Preparing an Industry-Based NIW Case

Step-by-Step Guidance for NIW with Industry Backgrounds or Industry-Based Proposed Employment (Non-Academic Roles)

This guide is intended for NIW applicants whose professional background is primarily industry-based, including applicants who are currently working in industry roles and/or whose proposed employment is industry-based, rather than academic or tenure-track in nature.

We have observed that in recent NIW adjudications, USCIS has applied increasingly heightened scrutiny to petitions filed by applicants with industry backgrounds. For these cases, USCIS often issues challenges as to whether you are making meaningful contributions as an individual professional, whether your proposed endeavor produces broader benefits that are not limited to your employer and its customers, whether you will be able to generate a broader impact through your endeavor, and whether you are likely to continue contributing to your field over time.

This guide is designed to help you understand common USCIS considerations specific to industry-based NIW cases, assess your current readiness, and identify professional activities you may consider pursuing to further enhance your petition.

The purpose of this guidance is to support informed preparation that may improve the likelihood of approval. However, approval is not guaranteed. Each NIW petition is adjudicated on a case-by-case basis based on the totality of the evidence. Factors beyond our control, such as individual officer discretion, officer experience, policy changes within USCIS, and evolving adjudication standards, may affect the final outcome. Nevertheless, we believe this guidance will help you better understand potential challenges and proactively strengthen your petition.

1. Demonstrating Impact Beyond Your Current/Potential Employer

Why this matters:

USCIS often evaluates whether an industry applicant's proposed endeavor is primarily attributable to their employer or is customers instead of benefiting the entire field of study. Work

that is proprietary, internal, or inseparable from a company's operations may be viewed as limited in national or field-wide impact.

What you can do:

You may consider taking one or more of the following steps to demonstrate professional impact beyond your employment:

- Participating in **industry or professional conferences**, forums, or summits.
- Seeking opportunities to **share your expertise publicly**, such as speaking on panels or presenting your work.
- Contributing to **open-source projects, public datasets, or shared technical resources** that allow other researchers or professionals to adopt, test, or build upon your work.
- Collaborating with **external organizations, academic institutions, government agencies, or nonprofits** in ways that extend the reach and applicability of your work beyond a single employer or client.
- Developing **publicly available tools, frameworks, protocols, or best-practice guidelines** that can be used by others in the field.
- Participating in **standards-setting activities**, working groups, or advisory committees that influence industry practices or research directions.
- Serving as a **reviewer, evaluator, or advisor** for journals, conferences, grant programs, competitions, or professional initiatives related to your expertise.

The emphasis is to show that your work is not only beneficial to a selected few but to a much broader audience. Importantly, please be sure to keep a record of these efforts and save the necessary evidence.

2. Clarifying Your Ability to Continue Advancing Your Proposed Endeavor

Why this matters:

USCIS frequently examines whether an industry applicant can realistically pursue the proposed endeavor as part of their employment. They are very likely to question your ability to advance your proposed endeavor if they believe that your endeavor is not closely related to your current/proposed position.

What you can do:

- When selecting your proposed endeavor, **please make a deliberate effort to frame it in a way that aligns your past experience, current role, and future plans**. If your current position involves research, you should try incorporating that research focus into your proposed endeavor. In addition, your proposed endeavor statement should explain the approximate portion of your employment that is devoted to research activities.

- If there is **an inherent gap/inconsistency between your employment and your proposed endeavor** (working as a software engineer while having a background and endeavor in the field of environmental science), you should make sure to gather evidence that demonstrates you are still actively pursuing your proposed endeavor independently. You should try to stay engaged in doing research on your own time with scholars in your field and save evidence, such as communications with your collaborators.
    - Document concrete time allocation and role continuity, such as dedicating a portion of your work hours, evenings, or independent time to activities directly tied to the proposed endeavor (e.g., research, development, writing, or collaboration).
    - Provide evidence of **employer support**, if applicable, such as permission to publish, engage in external collaborations, or pursue independent research aligned with your expertise.
    - Provide evidence of **independent initiative**, such as self-directed research projects, pilot studies, technical prototypes, or exploratory analyses that are not assigned by your employer.
    - Participating in or contributing to **open-source projects** or publicly accessible technical initiatives, where appropriate to your field.

Final Note

We highly encourage that you start preparing for your NIW petition as early as possible if you are currently working in industry instead of academia or plan to do so, as your petition can benefit greatly from getting the evidence we discussed above.

It is also important to remember that we need to demonstrate that you meet the NIW requirements at the time of filing, so any evidence gathered after the date of filing is technically not admissible even if you receive an RFE(Request for Evidence) so preparing the evidence early can make sure we include such evidence in your original petition to enhance the strength of your petition and minimize the chance of receiving an RFE.